

SUPERIOR COURT OF THE DISTRICT OF COLUMBIA
CRIMINAL DIVISION

DISTRICT OF COLUMBIA,
Respondent,

v.

JOHN DOE,
Movant.

DOCKET NO.: [TO BE CONFIRMED]

MOTION TO SEAL A FUGITIVE-FROM-JUSTICE ARREST RECORD PURSUANT TO D.C. CODE §
16-806(a)(2)

STATUTORY AUTHORITY

D.C. Code § 16-806(a)(2) – Reaches a person arrested in the District as a fugitive who waived extradition and was released or detained under the extradition statute, whose fugitive case reached final disposition, and who has appeared before the proper official in the other jurisdiction. The Court shall grant if sealing is in the interests of justice.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Superior Court of the District of Columbia, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in the District of Columbia.

II. PARTIES

3. Movant is JOHN DOE, whose address is 1000 Sample Street NW, Washington, DC 20001.
4. Respondent is the District of Columbia.

III. FACTS AND CASE HISTORY

5. On or about 09/28/2021, Movant was charged with Arrest in the District as a fugitive from justice at the request of another jurisdiction (synthetic sample entry) by Metropolitan Police Department (synthetic sample entry).
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. On 10/04/2021, the matter was resolved with the following disposition: Fugitive case reached final disposition (synthetic sample disposition).
8. The offense grade was: Not applicable – arrest on a fugitive warrant (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Movant may be eligible for sealing on the following basis: sealing of a fugitive-from-justice arrest record under D.C. Code § 16-806(a)(2) (Movant states extradition was waived, the fugitive case reached final disposition, and Movant appeared before the proper official in the other jurisdiction).
10. Movant states Movant was arrested in the District as a fugitive from justice and waived extradition (synthetic sample answer).

11. Movant states the fugitive case reached final disposition on the date stated above (synthetic sample answer).
12. Movant states Movant appeared before the proper official in the originating jurisdiction. This showing is Movant's own (synthetic sample answer).
13. Movant states Movant's full known history so far as Movant knows it, as read from Movant's own records (synthetic sample answer).
14. Movant sets out, in Movant's own words, why sealing is in the interests of justice (synthetic sample participant narrative).

IMPORTANT: Movant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Movant respectfully requests that this Court:

- (a) Grant this Motion and enter an Order directing the sealing of the records of the fugitive-from-justice arrest identified above in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, declare under penalty of perjury that the statements made in this motion are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street NW, Washington, DC 20001

Date: _____

[NOTE: Date of birth and Social Security Number should be added by movant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Serve the correct prosecutor: the U.S. Attorney's Office for DC or the DC Office of the Attorney General, depending on the case.

I certify that on _____, I served a copy of this Motion upon the prosecutor of record (the United States Attorney's Office for the District of Columbia or the District of Columbia Office of the Attorney General) at the following address:

[PROSECUTOR ADDRESS – CONFIRM USAO-DC OR DC OAG FOR THIS CASE]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

ATTACHMENTS

Attachments submitted with this motion:

- Certificate of Service
- [ANY DOCUMENT THE MOVANT CHOOSES TO FILE IN SUPPORT – MOVANT ENCLOSSES COPIES ONLY]

Prepared by movant using LegalEase RCAP. This is not an official court form.